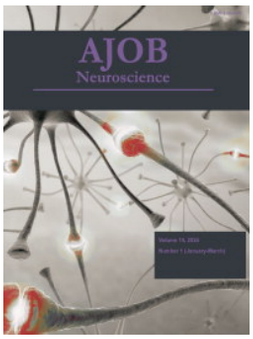


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# On the Relative Intrusiveness of Physical and Chemical Restraints

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against the government's overly restrictive measures against Covid-19. If the government changes that particular conscious state by chemical restraint without our informed consent, wouldn't this be a clear case of a violation of basic liberty?

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## REFERENCES

Crutchfield, P., and M. Redinger. 2024. The conditions for ethical chemical restraints. *AJOB Neuroscience* 15(1): 3–16 doi:10.1080/21507740.2022.2126539.
Pettit, P. 2008. The basic liberties. In *The legacy of H. L. A. hart: Legal, political, and moral philosophy*, ed. M. Kramer. Oxford: Oxford University Press.
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# On the Relative Intrusiveness of Physical and Chemical Restraints

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Crutchfield and Redinger argue that consciousness-altering chemical restraints are less "liberty-intrusive" (or as we will sometimes put it, just less "intrusive") than physical restraints. Physical restraints are "devices applied to the patient to limit their movement" (Crutchfield and Redinger 2024, 3). Consciousness-altering chemical restraints chemically "affect *what particular conscious state one is in*" (6, original emphasis), but do not render the patient unconscious. Crutchfield and Redinger claim that, while physical restraints intrude on basic liberties, consciousness-altering chemical restraints (CACRs) do not (necessarily) do so, and are therefore less intrusive.[1]

We raise some doubts about Crutchfield and Redinger's argument for this alleged difference between CACRs and physical restraints.

## BASIC LIBERTIES AND PHYSICAL RESTRAINTS

According to Crutchfield and Redinger, a basic liberty is one that is required for living a free life. With wrist straps in mind, they argue that people subject to physical restraints cannot live a free life:

> … the liberty to move one's arms how one wishes is required to live the life of a free person. Physical restraints intrude upon this liberty. Thus, physical restraints restrict a basic liberty. (6)

For the purposes of this commentary, we grant that (a) there is a meaningful distinction to be made between basic and nonbasic liberties, (b) this distinction plays the important normative role that Crutchfield and Redinger take it to play, and (c) physical restraints

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[1]It is unclear whether Crutchfield and Redinger hold that CACRs do not intrude on basic liberties or that they do not *necessarily* intrude on basic liberties. They alternate between the formulations in the text. In the interests of charity, we will assume the 'not necessarily' formulation throughout.
Authors are listed in order of contribution.

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intrude on a basic liberty. Yet we think the argument offered will need to be refined in order to arrive at (c).

Even if being able to move one's arms as one wishes is generally required for living a free life, temporary restrictions of such movement will often be consistent with doing so. Someone who is momentarily handcuffed is not precluded from living a free life; most of it will not be in handcuffs. Perhaps, instead, a person subject to physical restraint does not live freely *while restrained*. But it is doubtful that temporarily removing something that is necessary for living freely always intrudes on a basic liberty. For example, it is doubtful that you intrude on someone's basic liberty by surprising them with a strong hug, or tugging on their arm because they're going in the wrong direction. Nevertheless, in the interests of charity, we will grant that temporarily physically restraining someone does intrude on a basic liberty.

## FROM PHYSICAL TO CHEMICAL RESTRAINTS

But we think it is similarly plausible that many CACRs also intrude on basic liberties. Consider the following two patients.

The first, Alejandro, is strapped into a chair for 3 hours, and fights against the restraints for the entire time that he is restrained.

The second, Bernadette, is also strapped into a chair for 3 hours, but immediately recognizes the position she is in; if she tries to move her arms in various ways, she will fail. Because of this, she neither tries to nor forms the intention to do so.

Given her resignation, Bernadette does not wish to move her arms. Consequently, her arm movement, or lack thereof, is perfectly in accordance with her wishes. But compare Bernadette to a third patient, Chris, who is given a drug—a CACR—to subdue him. Like Bernadette, he does not form the intentions to move his arms in ways that would constitute resisting the treatment, and his movements are in accordance with his wishes. If there is to be a meaningful distinction between the restraints placed on Bernadette and Chris, it will have to invoke something other than the liberty to move as one *actually* wishes.

One might think that what matters is the liberty to move one's arms in accordance with one's actual *or counterfactual wishes*; roughly put, were Chris to wish to move his arms in a certain way, he would, whereas Bernadette wouldn't. However, if it is necessary for living freely that one's arm movements reflect one's actual or counterfactual wishes, and if interfering with this would intrude on a basic liberty, then it would seem plausible that interfering with the wishes themselves would also intrude on a basic liberty.

For example, on many plausible views, the relevant liberty at stake in Bernadette's case is, roughly, the liberty to live without interference (Lovett 2018). But Chris has this liberty intruded on as well; his mental, and related overt, actions are subject to another's interference. And we find it difficult to see any basis for thinking that the interference with Chris's actions is less severe than the interference with Alejandro's and Bernadette's actions. Moreover, the case of Chris is not unusual or idiosyncratic. It is representative of the sort of chemical restraints often employed, and that Crutchfield and Redinger have in mind.

## OBJECTIONS

Crutchfield and Redinger might respond by invoking their thesis that no particular conscious state is required for living freely. However, a similar point holds regarding physical states: there is no particular position that one's arms need to be in, at any given moment, in order for the person to live freely in that moment. Consider an individual who sits motionless in their armchair for the duration of a film. The constant *position* of their arms throughout the film is perfectly consistent with their living freely during that period. Compare this person to someone who is in a chair for the same period of time, and whose arms are held down by wrist straps. The restraints, we assume, intrude on one of their basic liberties. They plausibly do so by virtue of interfering with the person's overt actions. But just as it plausibly matters, for living a free life, that we are free from interference with respect to overt actions, so too it plausibly matters that we are free from interference with respect to our mental activity, such as our decisions and our formation and revision of intentions.

Alternatively, Crutchfield and Redinger might reply by invoking their claim that, even if conscious states

> weren't subject to others' influence, we would still lack control over them in the same way we have control over our bodies. It is no problem for one to move one's body to get a cup of coffee, if one wants to do so. But one can't in a similar way just will themselves to believe that the sky is green or that Wednesday is the day before Tuesday. (8)

We agree that one cannot change such beliefs as easily as one can get a cup of coffee, but this is not the whole picture. There are very many physical states that, as with many of our conscious states, "are not entirely up to us" (8). It is not up to us whether our

toes (assuming we have them) are at the end of our feet. And just as environmental features may, in some instances, affect what preferences or desires we have, *other* environmental features can also quite clearly affect whether we have goosebumps and how large our pupils are.

Of course, we have some control over many of our bodily states, and the positions our body parts are in, despite the fact that we do not have control over *all* of them, and despite the fact that the ones we do control are not *entirely* up to us. But similar things can be said about particular conscious states and mental activity. Importantly, there is often a difference to be drawn between states like beliefs, desires, and preferences, on the one hand—the examples on which Crutchfield and Redinger rely—and mental activity like decisions, and the formation and revision of intentions on the other. On a variety of views of free action, it is the latter that is the locus of our freedom, with the mental action of *deciding* as the prime example (Mele 2017, 2021). It is with respect to these that we are basically, non-derivatively, free. And even if one does not freely choose to be "combative" or "agitated" (8), one might still freely choose what one does while in that state. Interfering on the broader state of agitation or combativeness could still influence whether, or the extent to which, one freely makes choices while in the resulting state (De Marco 2022; Deery and Nahmias 2017).

## FINAL THOUGHTS

We conclude with a brief observation. Supposing that both physical restraints and CACRs often restrict basic liberties, we think that CACRs might often do so to a *greater* degree than physical restraints, in at least one respect. Physical restraints are relatively targeted—for example, wrist straps restrict arm movements, but not foot movements, mittens restrict finger movements, but not arm movements. CACRs, on the other hand, are relatively global—they will not merely affect intentions to move fingers or arms in particular, they will affect a large variety of intentions concerning bodily movements, and other things. Thus, whereas physical restraints often restrict a particular range of movements, CACRs may often restrict the formation of a very broad range of intentions.

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## REFERENCES

Crutchfield, P., and M. Redinger. 2024. The conditions for ethical chemical restraints. *AJOB Neuroscience* 15(1): 3–16. doi:10.1080/21507740.2022.2126539.

De Marco, G. 2022. Nonconsensual neurocorrectives, bypassing, and free action. *Philosophical Studies* 179 (6): 1953–72. doi:10.1007/s11098-021-01740-y.

Deery, O., and E. Nahmias. 2017. Defeating manipulation arguments: Interventionist causation and compatibilist sourcehood. *Philosophical Studies* 174 (5):1255–76. doi:10.1007/s11098-016-0754-8.

Lovett, F. 2018. Non-domination. In *The Oxford handbook of freedom*, ed. D. Schmidtz and C. E. Pavel, 106–23. Oxford: Oxford University Press. doi:10.1093/oxfordhb/9780199989423.013.3.

Mele, A. 2017. Direct control. *Philosophical Studies* 174 (2): 275–90. doi:10.1007/s11098-016-0681-8.

Mele, A. 2021. Direct versus indirect: Control, moral responsibility, and free action. *Philosophy and Phenomenological Research* 102 (3):559–73. doi:10.1111/phpr.12680.